THE CORPORATION OF THE TOWNSHIP OF NIPISSING
BY-LAW NO. 2022-42

Being a by-law to regulate the keeping and registration of dogs within the Township of Nipissing.

WHEREAS Section 10(1) of the *Municipal Act*, S.O. 2001, c. 25, as amended, authorizes the Township of Nipissing to provide any service or thing that the Township considers necessary or desirable for the public; and

WHEREAS Section 10(2)(9) of the *Municipal Act*, S.O. 2001, c. 25, as amended, authorizes the Township of Nipissing to pass By-laws respecting animals; and

WHEREAS subsection 8(3) of the *Municipal Act*, S.O. 2001, c. 25, as amended, provides that a By-law under Section 10 of that *Municipal Act* respecting a matter may regulate or prohibit and, as part of the power to regulate or prohibit respecting the matter, may require a person to do things respecting the matter, or may provide for a system of licenses respecting the matter; and

WHEREAS Section 103(1)(a) of the *Municipal Act*, S.O. 2001, c. 25, as amended, states that if a municipality passes a By-law regulating or prohibiting with respect to the being at large or trespassing of animals, the By-law may provide for the seizure and impounding of animals being at large or trespassing contrary to the By-law; and

WHEREAS Section 425(1) of the *Municipal Act*, 2001, S.O. 2001, c. 25, as amended, authorizes the Township of Nipissing to pass By-laws providing that a person who contravenes a By-law of the Township of Nipissing passed under that Act is guilty of an offence; and

WHEREAS Section 28 (2) of the *Municipal Freedom of Information and Protection of Privacy Act*, R.S.O. 1990, c. M.56, provides that a municipality may collect and retain personal information that is used for the purposes of law enforcement or necessary to the proper administration of a lawfully authorized activity; and

WHEREAS the Council of the Corporation of the Township of Nipissing deems it desirable to regulate the keeping and control of dogs in the Township of Nipissing in order to promote the safety and welfare of both animals and people;

Now Therefore the Council of The Corporation of the Township of Nipissing hereby enacts, as follows:

PART 1 – DEFINITIONS

1.1 "*Aid Dog*" means a dog that is registered and trained to aid a person with a disability and is actively in use for such purpose;
1.2 "*Animal*" means any member of the animal kingdom, other than a human;
1.3 "*Animal Control Officer*" means a person appointed by Council to enforce the provisions of this By-Law and includes Municipal By-law Enforcement Officer appointed by Council or a police officer;
1.4 "*Animal Shelter*" means the premises, as designated and posted by the Corporation of the Township of Nipissing, that are used for the detention, maintenance, or disposal of animals that have been impounded pursuant to this By-law. The operation and maintenance of the designated Animal Shelter shall be the responsibility of the contractor operating the Animal Shelter. Animal Shelter and Impound Centre shall have like meaning;
1.5 "*At Large*" means to be found in any place other than the premises of the owner of the animal and not under the control of a person and in such a manner as to prevent escape;
1.6 "*Control*" means the care and custody of an animal;

1.7 "*Council*" means the Council of the Corporation of the Township of Nipissing;
1.8 "*Dispose*" means to rehome or euthanize an animal.
1.9 "*Dog*" means a male or female of the domesticated canine species;
1.10 "*Dog Tag*" means a dog tag issued pursuant to this By-law;
1.11 "*Dwelling Unit*" means a group of rooms used or designed or intended to be used by one or more persons as a single, independent and separate housekeeping establishment in which food preparation and sanitary facilities are provided for the exclusive use of such person or persons; and which has a private entrance from outside the building or from a common hallway inside the building.
1.12 "*Keeps*" means to own, care, control, possess, keep, harbour, maintain, or feed an animal, whether temporary or permanent;
1.13 "*Kennel*" means an establishment in which greater than four dogs are housed, groomed, boarded, bred, or trained for gain or profit;
1.14 "*Leash*" means a restraint not exceeding 1.8 metres in length;
1.15 "*Leashed*" means a restraining device securely attached to the dog and a person or object;
1.16 "*Medical Officer of Health*" means the Medical Officer of Health for the North Bay Parry Sound District;
1.17 "*Microchip*" means an approved "Canadian Standard" encoded identification device implanted into a dog which contains a unique code that permits or facilitates access to owner information, including the name and address of the owner, which is stored in a central database;
1.18 "*Mitigating Factor*" means a circumstance which excuses aggressive behaviour of a dog and, without limiting the generality of the foregoing, may include circumstances where:
a) the dog was, at the time of the aggressive behaviour, acting in defence to an attack by a person or domestic animal;
b) the dog was, at the time of the aggressive behaviour, acting in defence of its young or reacting to a person or a domestic animal trespassing on the property of its owner; or
c) the dog was, at the time of the aggressive behaviour, being teased, provoked, or tormented;
1.19 "*Municipality*" means the Corporation of the Township of Nipissing.
1.20 "*Muzzle*" means a humane fastening or covering device over the mouth of a dog and of sufficient strength to prevent the dog from biting;
1.21 "*Nuisance Animal*" means any animal that unreasonably annoys humans, endangers the life or health of domestic animals or persons, or substantially interferes with the rights of persons, other than its Owner, to enjoyment of life or property.
1.22 "*Owner*" means any person who keeps, possesses, or harbours an animal, and where the owner is under the age of 18, the person responsible for the custody of the person under the age of 18;
1.23 "*Police Work Dog*" means a dog trained to aid law enforcement officers and used by such officers in the execution of their duties;
1.24 "*Premises*" means a building or a part of a building and any land appurtenant to the building or part of the building and includes a vacant lot;
1.25 "*Public Park*" means an area of public land specifically defined or set aside for use by and for the general public in both active or passive recreational uses; and includes all landscaping, facilities and apparatus, playing fields, utilities, buildings and other structures that are consistent with the general purposes of public parkland, and whether or not such recreational facilities are publicly operated or operated by other organizations pursuant to arrangements with the public authority owning the park and may include public and private cemeteries.
1.26 "*Public Property*" means all lands owned by the Township, any local boards, any corporations owned or controlled by the Township and includes all Crown lands within the Township;
1.27 "*Registrar*" means the person authorized to administer and enforce this By-law, and where applicable, shall be deemed to include an agent appointed by the Registrar to perform that task or exercise the power under this By-law;

1.28 "*Residential Unit*" means a suite operated as a housekeeping unit, used or intended to be used by one or more persons that contains cooking, eating, sleeping, and sanitary facilities;

1.29 "*Service Animal*" means an animal that:

a) is being trained by a recognized organization for service as a guide animal for the visually or hearing impaired or a special skills animal for other disabled persons;

b) has successfully completed training by a recognized organization for service as a guide animal for the visually or hearing impaired or a special skills animal for other disabled persons; or

c) is performing the service for which it was trained;

1.30 "*Veterinarian*" means a person registered or licensed under the *Veterinarian Act*;

1.31 "*Vicious Dog*" means a dog that has attacked without provocation or bitten a person or domestic animal as determined by the Animal Control Officer in accordance with Section 21 of this By-law.

PART 2 – APPLICATION

2.1 Except as otherwise provided, this By-law shall apply to every person in the *Township of Nipissing*.

PART 3 – REGISTRAR

3.1 The Municipal Clerk for the *municipality*, or designate, will be the *Registrar* pursuant to this By-law.

3.2 The *Registrar* is responsible for the issuance of tags and may, from time to time appoint, in writing, agents for the issuance of tags as they may consider necessary. The *Registrar* may revoke any such appointment in writing for such reason as the *Registrar* in their sole discretion may determine.

PART 4 – LICENSING

4.1 Except as provided to the contrary in this By-law, every *owner* of a *dog* shall register the *dog* with the *Registrar* within 7 days of becoming the *owner* of the *dog*.

4.2 Despite Subsection 4.1, an *owner* is not required to register a *dog* before the *dog* reaches the age of six (6) months. The onus of proof of age of the *dog* shall rest with the *owner*.

4.3 Seasonal residents and transients shall be exempt from registering *animals* with the *municipality* if they have been registered in the place of their permanent residence. Proof may be requested by By-law Enforcement.

PART 5 – REGISTRATION PROCESS

5.1 Every person who applies to the *Registrar* to register a *dog* will:

a) provide the name, address, telephone number, and email address (if applicable) of the *dog owner*,

b) provide a physical description of the *dog*,

c) provide such other information or documentation as may be required by the *Registrar*,

d) shall pay a registration fee to register the *dog* as outlined in Schedule A of this By-law;

5.2 Upon the applicant providing the required information and documentation to the *Registrar*, and paying the appropriate registration fee, the *Registrar* will register the *dog* and shall issue to the applicant the appropriate tag, which bears a unique serial number and other information, as determined by the *Registrar*.

5.3 The registration fee otherwise payable to register a *dog* shall be reduced to nil provided the *owner* of the *dog* produces, to the *Registrar* at the time of registration, evidence satisfactory to the *Registrar* that the *dog* is:

a) a service *dog* and is used in that capacity by the *owner* of the *dog* or by a person under 18 years of age that is part of the family of the *owner* of the *dog*; or

b) a *police work dog*.

5.4 No registration fee or any part thereof shall be refunded for any reason.

5.5 Every *owner* of a registered *dog* shall advise the *Registrar*, in writing, within 7 days thereafter, of:

a) the *owner's* change of address and phone number; or

b) the death or sale or other transfer of ownership of the *dog*.

5.6 The *Registrar, or designate,* shall have the right to cancel the registration of a *dog* in the event that the registration fee is not paid in full, through error, as a result of a cheque being returned marked Not Sufficient Funds, or for any other reason.

PART 6 – DOG TO WEAR TAG

6.1 Every *owner* of a *dog*, whether or not that *dog* has a *microchip* implanted, will, subject to subsection 6.2, keep the tag securely fixed on the *dog* for which it was issued, at all times during the year of issue.

6.2 Despite Subsection 6.1, an *owner* does not need to keep the tag on their *dog*:

a) while the *dog* is within the *dwelling unit* or on the *premises* of its *owner*;

b) while the *dog* is being lawfully used for hunting in the bush, and the license is produced upon request of an *Animal Control Officer*; or,

c) where a *veterinarian* has determined it is necessary to remove the tag for medical treatment of that *dog*.

6.3 No person shall remove a tag from a *dog* without the consent of the *owner*.

6.4 No person shall attach a tag to a *dog* other than the *dog* for which it was issued.

6.5 Every tag issued by the *Registrar* remains the property of the *municipality* and in the event the registration of a *dog* is cancelled by the *registrar*, the tag will be surrendered to the *Registrar*.

PART 7 – REPLACEMENT TAGS

7.1 The *Registrar* will issue a replacement *dog tag* to the *owner* of a registered *dog* upon application of the *owner*, that the tag was lost or damaged, and payment of a fee of $5.00 for the replacement tag.

PART 8 – REGISTRAR'S RECORDS

8.1 The *Registrar* shall maintain records of all *dog tags* and replacement tags issued by the *Registrar* and shall update such records as additional information is received pursuant to Part 5, of this By-law.

8.2 The records under Subsection 8 will include: the name, address, email address (if applicable), and phone number of the *owner* of the dog, a physical description of the *dog*, the serial number of the dog *tag* issued, the fee paid, and such other information as the *Registrar* in their sole discretion determines to be necessary.

8.3 Personal information is collected and maintained by the *Registrar* so that the Township may contact the owner for purposes related to administration and enforcement of this by-law and to facilitate the reunion of lost or strayed dogs with their *owners*. The *Registrar* or designate may use or disclose this information for these purposes, or for a consistent purpose, to an officer, employee or agent of the *Municipality* who needs it in the performance of their duties.

PART 9 – DOG LIMITATIONS

9.1 Except as otherwise provided in this By-law, no person shall keep or permit in or about any *dwelling unit* or *premises* more than four *dogs*.

9.2 Notwithstanding subsection 9.1, a person may keep or permit in or about a *dwelling unit* or *premises*:

a) a maximum of four *dogs* that are visiting or being kept under emergency circumstances for a continuous period not exceeding 14 days.

b) not more than 6 *dogs* on a property where the prime and legal use of the property is agricultural and the dogs are for herding and livestock protection.

9.3 Subsections 9.1 and 9.2 shall not apply to *dogs* under the age of sixteen weeks.

9.4 Notwithstanding subsection 9.1, a person may keep about a *dwelling unit* or *premises* every *dog* which was licensed, with the *municipality*, the day prior to this By-law coming into effect in the area in which the *dwelling unit* or *premises* is located, until the earliest of the death of the *dog*, the *owner* otherwise disposes of the *dog*, or the *owner* fails to register the *dog* in accordance with this By-law.

9.5 It shall be the responsibility of the *owner* of the *dog* claiming an exemption from Subsection 9.4 to substantiate the entitlement to the exemption claimed.

9.6 Notwithstanding sections 9.1 and 9.2, a person may apply, on a site-specific basis, for a *kennel* license provided that the operation of such a business, including a home occupation or home industry, is compliant with municipal zoning regulations.

9.7 The licensing of a *kennel* requires that the following conditions be met:

a) While the license is in force, it shall be continuously exposed in a conspicuous place in the interior of the *premises* for which the license is obtained.

b) At all times the *kennel* operator shall maintain the *premises* in a sanitary, well ventilated, clean condition, and free from offensive odors.

c) The operator shall keep the *animals* in sanitary, well bedded, well ventilated, naturally lighted, clean quarters, and at a healthful temperature at all times.

d) The operator shall feed and give water to the *animals* periodically each day and keep same in a clean, healthy condition, free from vermin and disease.

e) All refuse and waste matter from said *kennel* shall be disposed of daily in a proper and sanitary manner.

f) The Animal Control Officer, *Medical Officer of Health* or designate, and any other person authorized by the Corporation of the Township of Nipissing may inspect any place where a license has been issued, pursuant to this By-law.

g) If the *kennel* is found not to conform, under the requirements set out herein and within other applicable laws such as, but not limited to the Zoning By-law, the *Animal Control Officer,* or designate, may seize and impound the *animals* and the *municipality* may revoke the license issued to the *kennel*.

PART 10 – DOGS RUNNING AT LARGE

10.1 No *owner* shall permit a *dog*, except for an *aid dog* or a police *dog*, to be in the following municipal areas:

a) Municipal Office
b) Museum
c) Public Works Garage
d) Fire Stations 1 and 2

10.2 No *owner* of a *dog* shall cause, allow, or permit a *dog* to run *at large* within the limits of the *municipality*.

10.3 No *owner* shall permit a *dog* to run *at large* that is not within the *dwelling unit* or on the *premises* of its *owner* or on private property with the consent of the *owner* of that private property.

10.4 *Owners* shall ensure that their *dog* is on a *leash*, which is held under the effective *control* of a competent person.

10.5 A *dog* shall not be considered to be running *at large* if it is a *police work dog*, and is being used in the course of police duties, or it is a hunting *dog* accompanied by the *owner* or other responsible adult and is actively engaged in hunting or training for hunting, on un-posted land or on posted land with the permission of the *owner* that is not within the urban area of the *municipality*, as defined by municipal zoning and/or planning regulations.

10.6 No *owner* shall allow or permit their *dog* to trespass on private property whether on a *leash* or not.

PART 11 – SEIZE AND IMPOUND

11.1 Subject to subsection 11.2, an *Animal Control Officer* may seize and impound any *dog* found running *at large*.

11.2 An *Animal Control Officer* may enter on any private property without the consent of the *owner* of the property, for the purpose of discharging the duties imposed by this by-law and to enforce its provisions, and provided they are in active pursuit of a *dog*, enter upon the private property of any person for the purpose of continuing their pursuit of the *dog*, provided that in no instance shall any such agent of the Corporation enter into any *dwelling unit* or other building situated on private property without a Search Warrant authorizing such entry.

11.3 Where, in the opinion of the *Animal Control Officer* or designate, a *dog* seized under subsection 11.1 is injured or should be destroyed without delay for humane reasons or for reasons of safety to persons or *animals*, the *Animal Control Officer* or their designate or agent, despite subsection 11.5 may kill the *dog* in a humane manner as soon after seizure as they think fit, without permitting any person to reclaim the *dog* or without offering it for sale and no person shall be entitled to recover damages or compensation on account of being euthanized.

11.4 Subject to Subsection 11.3, any *dog* seized by an *Animal Control Officer* or designate under this By-law shall be impounded for 8 days from the time of its impoundment, excluding the day on which the *dog* was impounded, and days on which the *Animal Shelter* is closed, provided however, that if the *dog* seized is a female *dog* in heat, the female *dog* shall be impounded until the earlier of the day the *dog* is no longer in heat or 21 days. If the municipal *Animal Shelter* is closed for a period requiring one or more *animals* to be housed at another *Animal Shelter*, a notice of the location and contact information of the *Animal Shelter* used will be posted at the municipal *Animal Shelter* and on the front door of the municipal office.

11.5 During the impound period referred to in subsection 11.4, the *owner* of the *dog* shall be entitled to redeem the *dog* upon:

a) payment of the impound fee and board fee in an amount determined in accordance with Schedule "A" to this By-law;

b) payment of any *veterinarian* fees incurred for the well-being of the *dog*; and

c) registering the *dog* in accordance with this By-law if there is no evidence the *dog* is already registered. When no proof can be shown that the *dog* is registered the appropriate license fees shall be doubled.

11.6 If the *dog* is not redeemed within the time frame specified in subsection 11.4, the *Animal Control Officer* may dispose of the *dog* as they see fit without liability to any person for the disposition of the *dog* or the manner thereof. Prior to the *animal* being destroyed, every reasonable attempt shall be made to identity the *owner* through *microchip*, tattoo, or *dog tag*.

11.7 The *Animal Control Officer* is authorized, upon request of a police officer, to impound a *dog* for protective care purposes, pursuant to an incarceration, fire, medical emergency, or for any other situation that the *Animal Control Officer* deems appropriate and to keep such *animals* for a maximum of eight days.

11.8 In the event that the *owner* of the *dog* impounded for protective care does not claim the *dog* and pay the impound fees, board fees, and *veterinarian* fees in accordance with Schedule "A" of this Bylaw, within eight days, then on the ninth day, the *dog* may be deemed to have been impounded as running *at large* in accordance with Section 10 and time under subsection 11.4 shall begin to run.

11.9 Where a *dog* is seized and impounded, or impounded for protective care, the *owner*, if known, shall be liable for the impound fees, board fees and *veterinarian* fees in an amount determined in accordance with Schedule "A" to this By-law, whether the *dog* is claimed from the pound or not and shall pay all fees on demand by the *Animal Control Officer*. In appropriate humanitarian circumstances, the By-law Enforcement Officer may, in their discretion, waive all or part of the impound fees, board fees, and veterinarian fees, or provide for delayed or installment payments of same.

PART 12 – STOOP AND SCOOP

12.1 Every person who owns or *keeps* a *dog* shall forthwith remove and dispose of excrement left by the *dog* on private and public property within the municipality.

12.2 Section 12.1 may not apply to a person who owns or uses a seeing-eye *dog* registered with the Canadian National Institute for the Blind or a working police *dog*.

PART 13 – NOISE

13.1 The *owner* or person in *control* of a *dog* shall not permit or allow the *dog* to make or continue to make disturbing noises, including, but not limited to, continued or repeated howling, barking, whining, or other utterances causing unreasonable annoyance, disturbance, or discomfort to neighbours, or others in close proximity to the premises where the dog is kept or harboured for an unnecessary or unreasonable period of time which then has the effect of disturbing the peace, quiet, comfort, or repose of any individual.

PART 14 – VICIOUS DOG

14.1 No *owner* or person in *control* of a *dog* shall permit the *dog* to attack without provocation or to bite a person or domestic *animal*.

14.2 Where the *Animal Control Officer* is informed upon written complaint (Schedule "AC 1"), and is satisfied that a *dog* has attacked without provocation or bitten a person or domestic *animal*, and has further been provided with satisfactory evidence as to the name and address of the *owner* of the *dog*, the *Animal Control Officer* or designate may issue an Order (Schedule "AC2) to the *owner* requiring that the *dog* be kept *muzzled* at such times as are set out in the Order.

14.3 Such order shall set out the conditions of muzzling and the *owner* shall comply with any or all the requirements set out in Subsections 14.3, 14.4 and 14.5. The Order shall remain in effect until an action under the provisions of the *Dog Owners'* Liability Act has concluded, or until it is deemed by the Issuer that the *dog* in question does not present a risk to public safety, or an exemption is granted in accordance with 14.6 of this By-law.

14.4 Service of an Order that a *dog* has been deemed a *vicious dog* may be served on the person who shows in the *municipality's* records as the *owner* of the *dog*, or where the *dog* does not appear to be registered pursuant to this By-law, on such other person who appears to be the *owner* of the *dog*. Service may be affected by personal service, by mail, or by posting up in a conspicuous place at the address shown in the municipal records as the address for the *owner* of the *dog*, or where the *dog* is not registered under this By-law, at such address as appears to be the address of the *owner* of the *dog*.

14.5 Service of the Order shall be effective upon the date that personal service is effected, or where served by mail or by posting, shall be deemed effective on the third day after mailing or posting as the case may be.

14.6 Every *owner* of a *vicious dog* shall, when the *vicious dog* is within the boundaries of the *owner's premises,* always:

a) Keep the *vicious dog* confined inside a building or house or in an enclosed pen of sufficient dimension and strength to be humane and to prevent a *dog* from coming into contact with persons, other than the *owner* of the *dog,* or any other domestic *animal* or keep the animal confined within a securely fenced yard where the fence is a minimum height of 1.83 metres. The enclosed pen or the fenced yard shall be equipped with a locking device;

b) transport the *vicious dog* from one location to another by means of a collar-type *leash* and a *muzzle*.

14.7 Every *owner* of a *vicious dog* shall, when the *vicious dog* is not within the boundaries of the *owner's premises,* always:

a) keep the *vicious dog* under the effective *control* of an adult person on a *leash* held by the person; and

b) keep the *vicious dog muzzled*.

14.8 Every *owner* of a *vicious dog* shall notify the *Registrar* within two working days of any change in ownership or residence of the *vicious dog* and provide the *Registrar* with the new address and telephone number of the owner.

14.9 The notification that a *dog* is a *vicious dog* is effective from the date it is served, even if a hearing before *Council* is requested by the *owner* of the *dog* affected.

14.10 Failure to comply with an Order issued under the authority of Section 14 of this By-law is subject to the Set Fine as set out in Schedule B.

PART 15 – PENALTY

15.1 Every person who contravenes any of the provisions of this By-law is guilty of an offence and upon conviction is liable to pay a fine as provided for in the *Provincial Offences Act,* R.S.O. 1990, c. P.33, as amended.

PART 16 – INTERFERENCE

16.1 No person shall interfere with, hinder, or molest an agent of the Township in the performance of any duty of such agent, or seek to release any *animal* in the custody of the Township, or its agents, except as herein provided.

PART 17 – SHORT TITLE

17.1 This By-law shall be known as the "Dog Control By-law".

PART 18 – BY-LAW APPROVAL

18.1 This By-law shall come into force once the Short Form Wording and Set Fines are approved by the Regional Senior Judge of Ontario Court of Justice pursuant to the Provincial Offences Act.

PART 19 – REPEAL

19.1 That By-law No. 831 is hereby repealed once By-law 2022-41 comes into force.

Read a first, second and third time and passed this 20th day of September, 2022.

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Tom Piper
Mayor

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Kris Croskery-Hodgins
Municipal Administrator

SCHEDULE "A" – FEES TO BY-LAW 2022-42

SEIZED/IMPOUNDED	**Fee**	
Impoundment Fee	$25.00	
Daily Boarding Fee	$35.00	
Weekend Boarding Fee	$40.00	
Humane Services/Adoption Fee	$40.00	
Euthanasia Supplies Fee	$100.00	
TAGS AND LICENSES	**Fee**	**After March 31st**
One dog in a residence	$10.00	$20.00
Second, third and fourth dog in a residence	$20.00 each	$30.00 each
Replacement Tag(s)	$5.00	
Register Dog under Sec. 5.3	Nil	
Kennel License Fee	$75.00	$100.00